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7 **UNITED STATES DISTRICT COURT**
8 **DISTRICT OF NEVADA**

9 **MARK JOSEPH NEJMEH,**
10 Plaintiff,
11 v.
12 **THERIVA BIOLOGICS, INC.,**
13 Defendant.

Case No. 3:26-cv-00705-ART-CSD

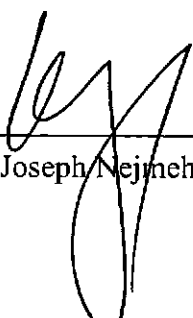
**PLAINTIFF'S MOTION FOR
LEAVE TO EXCEED THE PAGE
LIMIT FOR HIS REPLY (LR 7-3(c))**

14 Plaintiff Mark Joseph NejmeH, self-represented, respectfully asks the Court's
15 permission under Local Rule 7-3(c) to file a Reply of 15 pages, three pages more than
16 the 12 pages Local Rule 7-3(b) allows, excluding exhibits.

17 Good cause exists. Defendant's Corrected Opposition (ECF No. 21-1) runs 20
18 pages and is supported by a sworn declaration and 19 exhibits (ECF Nos. 15-1 through
19 15-20). It raises eight separate grounds and cites more than twenty decisions. Plaintiff,
20 who represents himself, has answered each ground in turn, and his Reply responds to
21 sworn facts in Defendant's declaration that Plaintiff could not have addressed in his
22 Emergency Motion. Plaintiff has kept the Reply as short as he could while answering
23 every point, and asks the Court to accept it as filed.

24 Dated: 10/2/2026, 2026

25 Respectfully submitted,

26 
27 Mark Joseph NejmeH, Plaintiff, self-represented

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12 **THERIVA BIOLOGICS, INC.,**
13 Defendant.

Case No. 3:26-cv-00705-ART-CSD

14 **PLAINTIFF'S REPLY IN SUPPORT**
15 **OF EMERGENCY MOTION FOR**
16 **TEMPORARY RESTRAINING**
17 **ORDER AND/OR PRELIMINARY**
18 **INJUNCTION (ECF No. 2)**

19 Plaintiff Mark Joseph NejmeH, self-represented, replies to Defendant's
20 Opposition (ECF No. 15) and Corrected Opposition (ECF No. 21-1), answering each
21 part in turn. Citations to "Compl." are to the complete Verified Complaint, attached as
22 Exhibit R-1. Citations to "NejmeH Decl." are to Plaintiff's declaration filed with this
23 Reply.

24 **Response to Part III.A (Legal Standard)**

25 Defendant says the relief Plaintiff seeks is extraordinary. It is, and extraordinary
26 relief is warranted here. Defendant's management has followed a pattern of deception,
27 issuing filings that stockholders cannot read and understand, with insufficient press
releases. Those actions are outrageous and intentional, and they have destroyed the
wealth of Defendant's own stockholders. Raising money in the equity markets does not
give management license to disregard the stockholders who supply that money. At trial,
the Court will see how pieces of other cases fit this one.

1. **Likely to win.** Plaintiff is likely to win, and not only because Defendant
admits its proxy error. This is not a case of honest management trying, as fiduciaries, to

1 do the right thing and making a mistake. Plaintiff has uncovered a pattern across several
2 companies. Board members sit together across those companies, and the companies use
3 the same lawyers and the same accountants. Heat Biologics (HTBX) and Defendant
4 (TOVX) each announced that their past financial statements could not be relied on,
5 thirteen days apart: Defendant on March 10, 2023, and Heat (then named NightHawk
6 Biosciences) on March 23, 2023 (Forms 8-K, accession nos. 0001104659-23-031255
7 and 0001558370-23-004449; Supp. Ex. SA ¶¶ 34–36, ECF No. 10). The same people
8 cross-fed one another the advisers who would work with them, to deceive and pillage
9 stockholders. It would be almost laughable if the harm were not so real. The trial will
10 clearly show it.

11 **2. Harm that cannot be undone.** If the Court waits, Defendant will use the New
12 Warrants to do what these same people have done before. The stock is pushed up on
13 good news, and retail investors are drawn in. Warrant holders then exercise their
14 warrants, sell the shares, and short the stock at the same time. Retail investors, now at a
15 loss, sell. Institutions buy. And the company completes a reverse merger, as Defendant's
16 own quarterly report already contemplates: it is discussing "a business combination,
17 merger, or reverse merger" (Compl. ¶ 90). Plaintiff will show this sequence at trial from
18 the record of Heat Biologics and the other companies in Supplemental Exhibits SQ–SS.
19 Once it runs its course, the shares are issued, sold and scattered, and the company is
20 merged away. No later judgment can put it back together.

21 **3. Fairness.** Fairness has a way of helping those who are currently being harmed.
22 On Defendant's side of the scale there is nothing: by its own sworn account, holding the
23 New Warrants costs it nothing, because no holder has exercised and none has reason to
24 (Shallcross Decl. ¶¶ 19–20). On the other side are Plaintiff and every stockholder, facing
25 dilution of more than one-third of the company.

26 Removing the poison pill would tip the scale further toward fairness. It would
27 bring in pharmaceutical companies with deep pockets that are looking hard for cancer

1 treatments, and with them the chance to repair the destruction done by current
2 management. The whole pharmaceutical industry is deeply interested in cancer, for good
3 reason. Artificial intelligence has opened new doors, and those who hold data from past
4 trials, as Defendant does, will find cures for your family and mine. Pharmaceutical
5 companies are not here to hurt anyone, and they do not put up with being bullied by a
6 management that is already moving American biotechnology overseas. Defendant's
7 research operations are near Barcelona, Spain, where it has held its stockholder meetings
8 in person with no remote attendance (Compl. ¶ 58), and where the relationships
9 management builds are governed by laws that stockholders here cannot enforce.

10 The most important relief Plaintiff seeks is the elimination of the poison pill,
11 because a poison pill tells potential buyers to stay away. Defendant delivers that message
12 itself. In its annual report it warns that its charter, bylaws and Nevada law "could make it
13 more difficult for a third party to acquire us, even if closing such a transaction would be
14 beneficial to our stockholders," because "[t]he Board of Directors could authorize the
15 issuance of an additional series of preferred stock." Defendant admits these provisions
16 "could discourage, delay or prevent a change in control, which may cause our stock
17 price to decline," and "may also prevent or frustrate attempts by our stockholders to
18 replace or remove our management" (Form 10-K for 2025, Risk Factors). In plain terms,
19 management has posted a warning sign at the door. It keeps out the buyers who would
20 pay stockholders fair value, and it keeps management in place.

21 **4. The public interest.** The public is dying: mothers, fathers, sisters, brothers and
22 friends. During the AIDS epidemic, a worldwide crisis, treatments did make their way
23 forward. Pancreatic cancer deserves no less. Yet Defendant's management has made
24 itself the one who decides how this science moves forward. Imagine a mother or father
25 with pancreatic cancer reading Defendant's financing schemes while sick with this
26 deadly disease.

27

1 Plaintiff fights for James "Jim" Mulligan of Clifton, New Jersey, who died of
2 pancreatic cancer in 1987 at 56 and left behind three children who loved him dearly. He
3 was his family's sole supporter. He weighed 190 pounds in January and barely 85
4 pounds in August, and he was dead in September. His family ended up losing everything,
5 including their home. Nearly forty years later, patients still face the same few months.
6 Everyone knows a Jim Mulligan. Everyone believes there can be better people to lead a
7 biotechnology company.

8 Plaintiff is disgusted by Defendant's behavior and its lies, and by how they have
9 slowed the science and the free flow of legitimate financing. The evidence is plain, and it
10 will become plainer who the people are that carry out these practices and this deception.
11 The Court will see that, across many companies, they do the same thing.

12 Defendant answers this stockholder's case with seven decisions, none of which
13 involves stockholders, a proxy statement or warrants: a prisoner's civil-rights suit
14 (*Graham*), Navy sonar and whales (*Winter*), a house foreclosure (*Paradise Harbor*),
15 satellite television (*DISH*), a state medical-licensing law (*Mazurek*), genetically modified
16 sugar beets (*Center for Food Safety*), and a brokerage's dispute with a tribal court (*Wells*
17 *Fargo*). Plaintiff respects each decision. But "general expressions, in every opinion, are
18 to be taken in connection with the case in which those expressions are used," and "ought
19 not to control the judgment in a subsequent suit when the very point is presented for
20 decision." *Cohens v. Virginia*, 19 U.S. 264, 399 (1821) (Marshall, C.J.). "General
21 expressions transposed to other facts are often misleading." *Armour & Co. v. Wantock*,
22 323 U.S. 126, 133 (1944). Each of Defendant's cases turned on facts that do not exist
23 here. What exists here is an admitted proxy error, sixteen million free warrant shares,
24 and a management that sold its stockholders' good news at less than half its market price.

25 **Response to Part III.B (No Emergency)**

26 The October 2025 inducement shows how this works. On October 15, 2025, the
27 stock ran up to \$0.86 on more than 196 million shares traded. The next day, October 16,

1 Defendant signed the inducement agreement. On October 17, with the stock closing at
2 \$0.42, the holders exercised their earlier warrants at \$0.54 and received two new
3 warrants for every one exercised: 16,184,560 New Warrants (Form 10-Q, Aug. 2026,
4 Note 10; daily prices, Yahoo Finance). By Defendant's own accounting, the inducement
5 transferred \$5.9 million in value to those holders in exchange for \$4.4 million in cash,
6 and Defendant recorded the \$1.5 million difference as a "deemed dividend" to them
7 (*id.*). Defendant gave away more than it raised. That is not financing to survive.

8 The price can also change on its own overnight. On May 7, 2025, when
9 Defendant announced its VIRAGE results, the stock traded at \$2.83 before the market
10 opened (Nejmeh Decl. ¶ 6). By Defendant's own sworn account, it was \$0.43 by June
11 2025 (Shallcross Decl. ¶ 5). On a good-news day like May 7, every New Warrant is
12 instantly worth exercising, and 16,184,560 shares can be issued, sold and shorted before
13 any court can act.

14 Defendant calls a merger "speculation." The words are Defendant's own: its
15 quarterly report says it is discussing "a business combination, merger, or reverse merger"
16 (Compl. ¶ 90). Whether a merger triggers exercise is beside the point. A reverse merger
17 can carry stockholder value and rights out of the company, as the same directors watched
18 happen at Heat Biologics (Supp. Ex. SR ¶¶ 4, 17).

19 Nor does Defendant's promised re-vote end the emergency. A re-vote called by
20 Defendant, on Defendant's schedule, at a meeting Defendant has moved to Spain with no
21 remote attendance (Compl. ¶ 58), would not examine what happened at the December
22 15, 2025 meeting or the meetings that followed. Plaintiff asks the Court to examine those
23 first (Compl., Prayer E–G). And under the NYSE American's new \$0.25 rule,
24 Defendant's \$0.22 stock faces a reverse split before July 1, 2027, which Defendant says
25 it may carry out "without stockholder approval." The emergency is real, and Defendant
26 is building it.

27 **Response to Part III.C.1 (Materiality)**

1 **First**, Defendant says any stockholder who wished to vote against Proposal 5
2 could still instruct his broker. That misses how this vote was won. Proposal 5 did not
3 pass because opponents failed to vote; it passed because Defendant finally had a
4 quorum, and it had a quorum only because 10,823,826 shares were voted by brokers
5 whose owners gave no instructions (Form 8-K, Aug. 4, 2026). Whether a proposal is
6 routine decides whether those uninstructed shares fill the room. A proxy that told
7 stockholders two contradictory things on that very question goes to the heart of the vote.

8 **Second**, Defendant says the error was harmless in the “total mix” because other
9 passages were correct, there was a phone number, and no one called. Defendant’s filings
10 are long, technical and difficult for an ordinary stockholder to read. Even Plaintiff,
11 reading them closely, could not tell how many shares existed (Nejmeh Decl. ¶ 9). A
12 stockholder cannot call about an error he cannot see.

13 **Third**, Defendant says the error did not concern the merits of the warrants. It
14 concerned something just as important: whether stockholders’ votes would be cast for
15 them. And the merits were hidden too. The June 29, 2026 proxy on which stockholders
16 voted says nothing about the \$5.9 million in value the October 2025 inducement
17 transferred to the warrant holders for \$4.4 million in cash, or the \$1.5 million “deemed
18 dividend” Defendant recorded for them; that appears only in Defendant’s later quarterly
19 report (Form 10-Q, Aug. 2026, Note 10). And while the proxy says the exercise price can
20 be lowered “to any amount,” Defendant’s own sworn declaration to this Court omits it.

21 **Fourth**, Defendant says the vote “was tabulated exactly as it would have been
22 had the passage been error-free.” The count is not the question. The question is who was
23 voting. Four special meetings on Proposal 5 alone, on December 15, 2025, February 11,
24 2026, April 9, 2026 and June 5, 2026, failed for lack of a quorum while the shares were
25 in retail hands (Shallcross Decl. ¶¶ 13–14). Between those failures, Defendant added
26 shares: from 33,739,643 at the October 2025 record date to 45,892,668 at the June 2026
27 record date (Compl. ¶¶ 59–62), including 10,204,319 sold through its at-the-market

1 program in the first half of 2026 for about \$2.3 million, roughly \$0.23 a share (Form 10-
2 Q, Aug. 2026). It sold them while the price sat at its lowest: \$0.16 on February 23, 2026,
3 and between \$0.17 and \$0.20 from late January through mid-March (daily prices, Yahoo
4 Finance). It sold them while telling buyers that the NYSE American viewed only trading
5 “at or below a price of \$0.10” as abnormally low (Form 10-K for 2025, Risk Factors),
6 and without disclosing that on December 3, 2025, before that report was filed, the NYSE
7 American had proposed a \$0.25 rule, under which a single close below \$0.25 means
8 immediate suspension and delisting, approved by the SEC on August 14, 2026. On the
9 June 2026 record date, the stock closed at \$0.253 (June 29, 2026 Proxy Statement).
10 Defendant wants an excuse for another reverse split, and it has built one without telling
11 its stockholders.

12 Then, at the August 3, 2026 annual meeting, held in Spain with no remote
13 attendance, Defendant bundled Proposal 5 with routine items on which brokers could
14 vote uninstructed shares. Of the 16,880,127 shares present, 10,823,826 were such broker
15 votes; without them, about 6.06 million shares, roughly 13% of the 45,892,668
16 outstanding, would have been present (Form 8-K, Aug. 4, 2026, Item 5.07). The routine
17 label filled the room. Proposal 5 then passed with 3,665,312 votes, about 8% of
18 outstanding shares and only 637,161 more than it needed (Compl. ¶ 87), approving
19 16,184,560 new shares, more than a third of the company. Defendant had issued new
20 shares equal to about sixteen times that margin before the record date. Plaintiff will show
21 who bought them and how they voted. Plaintiff believes that if the poison pill is lifted
22 and the market is allowed to value Defendant’s science, the stock would trade at many
23 times its current price, as high as \$5 per share.

24 Defendant says no quorum was present on December 15, 2025. The argument at
25 that meeting began over exactly that question. When Plaintiff asked how many shares
26 were outstanding, the number needed to determine a quorum, Mr. Shallcross first said he
27 did not know; only after Defendant’s counsel, Ms. Marlow, told him he had to answer

1 did he state approximately 33,900,000 shares (Compl. ¶ 38). Mr. Shallcross did not
2 attend in person; he attended by Zoom (Nejmeh Decl. ¶ 7). What kind of company's
3 chief executive does not show up in person for its own stockholder meeting, a meeting
4 that was not called off until stockholders showed up? Mr. Shallcross himself, with Ms.
5 Marlow present, announced that the meeting would reconvene on December 22, 2025,
6 and asked whether the stockholders would be there. Plaintiff answered that it was
7 Hanukkah, but that he would be there (Nejmeh Decl. ¶ 8; Compl. ¶¶ 41–42). Defendant
8 admits it “discussed” that date but never held the meeting (Shallcross Decl. ¶ 12). About
9 two hours later, Ms. Marlow called Plaintiff and told him, in substance, “You don’t
10 really want to have the meeting on December 22” (Compl. ¶¶ 45–46).

11 Two months earlier, social media had been filled with posts promoting Defendant
12 as a “low float” stock. On October 15, 2025, the day the stock ran to \$0.86 on more than
13 196 million shares traded, Plaintiff publicly disputed those claims, under his own name
14 and with his phone number posted: Defendant “does not have a 9 million share float due
15 to warrants... More like 18 million” (Nejmeh Decl. ¶ 9; Ex. R-2). Even Plaintiff
16 understated it: Defendant’s own October 2025 record-date count was 33,739,643
17 (Compl. ¶ 59). On October 24, 2025, Defendant issued a press release under NYSE
18 American Section 401(d) about the “unusual market activity,” stating there were “no
19 undisclosed material developments” (GlobeNewswire, Oct. 24, 2025). It said nothing to
20 correct the low-float claims. Plaintiff requests a full explanation of where the low-float
21 figure came from, who knew it was wrong, and who traded on it.

22 Plaintiff suspects these events were coordinated: the at-the-market sales near the
23 lows, the purchases before the record date, the broker votes on uninstructed shares, and
24 the timing of each meeting. The records will show whether they were. Plaintiff asks
25 leave to serve a subpoena on Broadridge Financial Solutions, Inc., the tabulator on
26 whose share reports Defendant relies (ECF No. 21-1 at 18; Exs. 4, 8–10, 16), for its
27 records of all five meetings, shares present, quorum determinations, and broker votes on

1 uninstructed shares by broker and proposal, and to take the testimony of Broadridge's
2 representative most knowledgeable about those records; and asks that Defendant
3 preserve the recording, notes and inspector's report of the December 15, 2025 meeting
4 (Compl. ¶ 41).

5 **Response to Part III.C.2 (Loss Causation)**

6 Defendant says Plaintiff has suffered only dilution and the loss of voting power.
7 That is exactly the harm: stockholders are being diluted and stripped of their voice, and
8 the money can come back once the company is free of the warden now managing it. This
9 is the fox in the hen house. The real casualties are the scientists Defendant laid off, seven
10 employees, 32% of its workforce, on September 30, 2025 (Form 10-K for 2025), and a
11 Phase 3 trial in pancreatic cancer whose design the FDA agreed to on March 23, 2026,
12 which has not begun, because Defendant says its cash "will not be sufficient for
13 additional trials" (Form 10-Q, Aug. 2026). Potential investors stay away from a company
14 run this way.

15 Nor is this "dilution alone," as in *New York City Employees' Retirement System v.*
16 *Jobs*, 593 F.3d 1018, 1023–24 (9th Cir. 2010), where stockholders challenged an
17 executive stock-option plan. Here, Defendant has measured the money taken from its
18 stockholders itself: the October 2025 inducement transferred \$5.9 million in value to the
19 warrant holders for \$4.4 million in cash, and the \$1.5 million difference was recorded as
20 a "deemed dividend" that "increased net loss available to common shareholders" (Form
21 10-Q, Aug. 2026, Note 10). Proposal 5 is what made those warrants exercisable. And
22 *Jobs* reaches only the federal proxy claim; Plaintiff's Nevada claims concerning the
23 December 15, 2025 meeting and the meetings that followed carry no such requirement
24 (Compl. ¶ 111; Prayer E–G).

25 **Plaintiff offers the Court a simple, fair solution.** Defendant swears that a hold
26 costs it nothing. Plaintiff therefore asks for a one-year moratorium, during which: (1) no
27 New Warrant may be exercised, and no exercise price lowered; (2) no reverse stock split

1 may be carried out without a stockholder vote on a corrected, plain-language proxy, with
2 remote attendance; and (3) no preferred stock may be issued as a poison pill to block a
3 change of control. Defendant remains free to raise capital through its at-the-market
4 program, as it already does. In that year, the market can test what this company is truly
5 worth. Let the buyers and partners who want to fund a Phase 3 pancreatic cancer trial
6 come forward, free of the warning sign at the door. If management is right, nothing is
7 lost. If Plaintiff is right, the stockholders, the scientists and the patients get their chance.
8 Either way, the truth comes out.

9 **Responses to Parts III.C.3 (Counsel's Call) and III.C.4 (Nevada Law)**

10 Defendant calls Ms. Marlow's call a "discussion... concerning the next special
11 meeting date." It was not a friendly chat. Ms. Marlow and Plaintiff were adversaries, and
12 she had no reason to call him except the one she gave: about two hours after Mr.
13 Shallcross announced that the meeting would reconvene on December 22, and Plaintiff
14 said he would be there, she told him, in substance, "You don't really want to have the
15 meeting on December 22," and, when he refused, "Oh, well, we will just start all over
16 again" (Compl. ¶¶ 45–46; Nejme Decl. ¶ 8). The December 22 meeting never
17 happened. Plaintiff believes the call was made because Defendant's representatives
18 realized that announcing the December 22 reconvened meeting was a mistake, one that
19 could bind Defendant, and set out to undo it. Defendant did start all over again: four
20 more meetings and a new record date, while it sold millions of new shares, until the
21 August 3, 2026 vote. Defendant's own authority asks whether a conversation was
22 "reasonably calculated to influence" a stockholder. *Rabbani v. Enzo Biochem, Inc.*, 682
23 F. Supp. 2d 400, 411–12 (S.D.N.Y. 2010). A call by the company's lawyer to the
24 stockholder who had just promised to attend, telling him he does not "really want" the
25 meeting, is exactly that. Ms. Marlow is a witness to these events. Her law firm, Blank
26 Rome LLP (Supp. Ex. SA ¶ 35), now represents Defendant in this case.

27

1 Ms. Marlow is no stranger to this pattern. She was issuer counsel to Heat
2 Biologics in 2018 (Supp. Ex. SA ¶ 35); Defendant held its 2017, 2018 and 2019 annual
3 meetings at her firm's New York offices (Proxy Statements, 2017–2019); company
4 notices in Defendant's July 2022 MSD financing were directed to her (Supp. Ex. SA ¶
5 35); and Defendant's registration statement of November 7, 2025, five weeks before her
6 call to Plaintiff, names her as its counsel (Form S-3, Nov. 7, 2025). She has also led
7 financings for other small biotechnology issuers, including iBio, Inc. Defendant once
8 held its stockholder meetings in New York, at her firm's offices. It now holds them in
9 Spain, with no remote attendance.

10 Defendant says the December 15, 2025 meeting is "irrelevant" to the August 3,
11 2026 vote because the August meeting had a new notice, a new record date and a new
12 proxy. Each of those is Plaintiff's point. Defendant used the months between to change
13 who could vote: the new record date came after Defendant sold 10,204,319 new shares
14 through its at-the-market program near the stock's lows (Form 10-Q, Aug. 2026).

15 Defendant now tells the Court that "[e]very later special meeting likewise fell
16 short by millions of shares until the annual meeting" (ECF No. 21-1 at 15, citing
17 Shallcross Decl. ¶ 14). The meetings that asked stockholders only about the warrants
18 failed by millions of shares. The meeting that passed was the one where Defendant
19 bundled the warrants with routine items, so that brokers could vote 10,823,826
20 uninstructed shares and fill the room (Form 8-K, Aug. 4, 2026). Defendant's own words
21 confirm that the broker votes, and the proxy's contradictory instructions on which
22 proposals were routine, decided this vote. Brokers held the balance. When Plaintiff, after
23 learning the law, asked his own broker to register his shares in his own name, so that no
24 broker could vote or hold them for him, it took the broker about six weeks (Nejmeh
25 Decl. ¶ 11). Plaintiff suspects broker involvement in how this vote was assembled; the
26 Broadridge records will show which brokers voted uninstructed shares, and how.

27

1 Defendant also says the inducement agreement obligated Theriva “to call a
2 further meeting every sixty days thereafter until Warrant Exercise Approval was
3 obtained” (Shallcross Decl. ¶ 7). That is a promise management made to the warrant
4 holders: to keep calling meetings until the holders got their approval. It shows whose
5 interests management was serving. A promise to the warrant holders does not excuse the
6 December 15 meeting, the announced December 22 reconvening that Defendant
7 “discussed” but abandoned (Shallcross Decl. ¶ 12), or counsel’s call telling the
8 stockholder who said he would attend that he did not “really want” that meeting (Compl.
9 ¶¶ 45–46). Whether the December meeting was validly adjourned, and the effect of
10 abandoning it, are questions of Nevada law for this Court (Compl. ¶ 111; Prayer F–G).

11 **Responses to Parts D through H**

12 Defendant’s speculation argument is answered above: Defendant can lower the
13 exercise price “to any amount” at any time, and has already done so once (Response to
14 Part III.B). Defendant says dilution can be repaid in money damages. Not by this
15 Defendant. Its own auditor has raised “substantial doubt” about its ability to continue as
16 a going concern; it has an accumulated deficit of about \$364 million and had about \$9.6
17 million in cash in early August 2026 (Form 10-Q, Aug. 2026). Damages are no remedy
18 against a company that may not survive, or that is merged away in the reverse merger it
19 is already discussing (Compl. ¶ 90). Defendant says Plaintiff holds only about 0.2%.
20 Plaintiff brings this case for every stockholder, all of whom face dilution of more than
21 one-third of the company. And Plaintiff’s vote was counted only to be swamped: his
22 shares, now registered in his own name (Nejmeh Decl. ¶ 11), were outvoted by
23 10,823,826 shares that brokers voted for owners who gave no instructions (Form 8-K,
24 Aug. 4, 2026). A vote that counts for nothing against a room filled by brokers is a vote
25 impaired.

26 Defendant says Plaintiff “has placed nothing on his side of the scale.” He has
27 placed the dilution of every stockholder by more than one-third, the patients waiting on a

1 stalled Phase 3 trial, and Defendant's own accounting of \$5.9 million transferred to the
2 warrant holders for \$4.4 million (Responses to Parts III.A, III.C.2). Defendant says a
3 hold would burden warrant holders "not before the Court." By Defendant's own sworn
4 account, a hold costs them nothing, since no one will exercise (Shallcross Decl. ¶¶ 19–
5 20). The "certainty on which public-company capital markets depend" cannot rest on a
6 vote Defendant admits was solicited with contradictory instructions. And the complete
7 Verified Complaint has now been filed, as the Court ordered (ECF No. 20).

8 Defendant asks for a "substantial" bond. Rule 65(c) leaves the amount to the
9 Court, which may dispense with a bond where there is no realistic likelihood of harm to
10 the defendant. *Jorgensen v. Cassidy*, 320 F.3d 906, 919 (9th Cir. 2003). Defendant
11 swears a hold costs it nothing. What, then, would Defendant lose? Plaintiff is a self-
12 represented stockholder who has lived in his truck since August 2024 (Nejmeh Decl. ¶
13 5). A substantial bond would end this case before the Court examines it. Plaintiff asks
14 that no bond be required, or that it remain at \$100. Plaintiff does not object to
15 Defendant's request that any order not restrain strategic transactions, except as to the
16 three items of the one-year moratorium (Response to Part III.C.2).

17 Defendant says its Broadridge reports "establish the represented-share counts for
18 every meeting." Those are summaries. The question is who voted, through which
19 brokers, on whose instructions, and whether a quorum was present on December 15,
20 which the underlying records will show (Response to Part III.C.1). Spain matters
21 because Defendant moved its meetings beyond the reach of ordinary stockholders.
22 Counsel's call matters because it ended the December 22 meeting. The low-float claims
23 matter because the stock ran to \$0.86 on them the day before the inducement was signed.
24 Plaintiff asks only for preservation and the narrow subpoenas described above.

25 A re-vote is not the answer (Response to Part III.B). If Defendant calls one,
26 Plaintiff asks that it be held on a corrected, plain-language proxy; with remote
27 attendance; with an independent inspector of elections; and with Proposal 5 voted on

1 separately, not bundled with routine items, so that uninstructed broker votes cannot
2 supply the quorum. Until then, the moratorium should remain in place.

3 **Plaintiff has not received Defendant's Opposition.**

4 Plaintiff has not received Defendant's Opposition (ECF No. 15) or its Notice of
5 Errata and Corrected Opposition (ECF No. 21) by email, and he is traveling and has not
6 yet been able to check his P.O. Box. Plaintiff obtained copies himself from PACER on
7 October 1, 2026 (Nejmeh Decl. ¶ 3). Plaintiff makes service easy: he can be reached at
8 732-995-3914, and he is filing the Court's Consent for Electronic Service of Documents
9 for service at research@warrantwire.com.

10 **Correction to the Verified Complaint.**

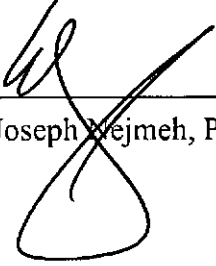
11 Paragraph 10 of the Verified Complaint states that Mr. Pitoniak purchased
12 Theriva shares in approximately November 2025. That is a drafting error; Mr. Pitoniak's
13 affidavit (Exhibit B) does not say it. Mr. Pitoniak bought his Theriva shares in 2024.
14 Plaintiff will correct paragraph 10 in an amended complaint.

15 **Relief requested and request for hearing.**

16 Plaintiff respectfully asks the Court to: (1) enter a one-year moratorium during
17 which no New Warrant may be exercised and no exercise price lowered; no reverse stock
18 split may be carried out without a stockholder vote on a corrected, plain-language proxy,
19 with remote attendance; and no preferred stock may be issued as a poison pill to block a
20 change of control; (2) order Defendant to preserve the records of the December 15,
21 2025, February 11, 2026, April 9, 2026, June 5, 2026 and August 3, 2026 meetings, and
22 grant leave to serve the narrow Broadridge subpoena described above; (3) require no
23 bond, or a bond of \$100; (4) if Defendant calls a re-vote, require that it be held on a
24 corrected, plain-language proxy, with remote attendance, an independent inspector of
25 elections, and Proposal 5 voted on separately; and (5) allow this case to proceed to the
26 jury trial Plaintiff has demanded (ECF No. 7). Plaintiff respectfully requests a hearing on
27 his Emergency Motion, so that he may answer the Court's questions in person.

1 Dated: 10/2/2026, 2026

2 Respectfully submitted,

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4 
5 _____
6 Mark Joseph Wejmeh, Plaintiff, self-represented
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24
25
26
27

1 Mark Joseph NejmeH
2 P.O. Box 589
3 Clifton, New Jersey 07012
4 Telephone: 732-995-3914
5 Email: research@warrantwire.com
6 Plaintiff, self-represented

7 **UNITED STATES DISTRICT COURT**
8 **DISTRICT OF NEVADA**

9 **MARK JOSEPH NEJMEH,**
10 Plaintiff,
11 v.
12 **THERIVA BIOLOGICS, INC.,**
13 Defendant.

Case No. 3:26-cv-00705-ART-CSD

14 **DECLARATION OF MARK**
15 **JOSEPH NEJMEH IN SUPPORT OF**
16 **REPLY**

17 I, Mark Joseph NejmeH, declare:

18 1. I am the Plaintiff and represent myself. I make this declaration from personal
19 knowledge.

20 2. Paragraphs 35 through 48 of my Verified Complaint, describing the December
21 15, 2025 meeting and the telephone call from attorney Leslie Marlow about two hours
22 later, are true.

23 3. I have not received Defendant's Opposition (ECF No. 15) or its Notice of
24 Errata and Corrected Opposition (ECF No. 21) by email. I searched my email,
25 research@warrantwire.com, which forwards to my personal email, and found no email
26 from Defendant's counsel. I am traveling and have not yet been able to check my P.O.
27 Box. I obtained copies from PACER on October 1, 2026.

4. Exhibit R-1 is a true copy of my complete Verified Complaint, signed and
verified on September 16, 2026.

5. I have lived in my truck since August 2024.

6. On the morning of May 7, 2025, before the market opened, I saw Theriva's
stock trading at \$2.83 per share.

1 7. At the December 15, 2025 meeting, Mr. Shallcross did not attend in person; he
2 attended by Zoom.

3 8. At that meeting, Mr. Shallcross, with Ms. Marlow present, announced that the
4 meeting would reconvene on December 22, 2025, and asked whether the stockholders
5 would be there. I said that it was Hanukkah, but that I would be there.

6 9. In October 2025, many posters on StockTwits and Twitter promoted Theriva as
7 a "low float" stock. On October 15, 2025, under my real name and account
8 (@news_weed), with my phone number posted, I replied on Twitter: "\$tovx does not
9 have a 9 million share float due to warrants and 4.5 million shares ready to be released
10 plus even more with option grants to employees. More like 18 million." A true copy is
11 attached as Exhibit R-2. Theriva's own count for its October 2025 record date was
12 33,739,643 shares.

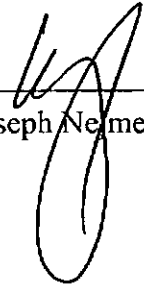
13 10. In 2022 or earlier, after I posted on StockTwits that StockTwits helps the
14 pumps, StockTwits banned me from its platform.

15 11. At TD Ameritrade, my Theriva shares were held in my name, so that no one
16 could borrow them for short selling. When my account was moved to Charles Schwab in
17 or about 2023, no one told me my shares were no longer held in my name. In late July
18 2026, after I learned that registering my shares in my own name would give me rights as
19 a stockholder of record, I asked Schwab to register them in my own name. It took
20 Schwab about six weeks to do it. My shares are now registered in my name with
21 Theriva's transfer agent.

22 I declare under penalty of perjury under the laws of the United States of America
23 that the foregoing is true and correct.

24
25
26
27

Executed on 10-2-2014, 2026, at ST Joseph LIBRARY ^{South} Bend Indiana



Mark Joseph Nejme

EXHIBIT R-1

Complete Verified Complaint (25 pages)
signed and verified September 16, 2026

Nejmeh v. Theriva Biologics, Inc., No. 3:26-cv-00705-ART-CSD

1 Mark Joseph NejmeH
2 P.O. Box 589
3 Clifton, New Jersey 07012
4 Telephone: 732-995-3914
5 Email: research@warrantwire.com
6 Plaintiff, self-represented
7

8 UNITED STATES DISTRICT COURT
9 DISTRICT OF NEVADA
10

MARK JOSEPH NEJMEH, Plaintiff, v. THERIVA BIOLOGICS, INC., a Nevada corporation, Defendant.	Case No. _____ VERIFIED COMPLAINT FOR DECLARATORY AND INJUNCTIVE RELIEF Section 14(a) and Rule 14a-9 Nevada corporate law and bylaws Expedited relief requested Jury trial demanded
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11
12 Plaintiff Mark Joseph NejmeH alleges the following based on personal knowledge as to his
13 own conduct, on the cited public filings, and on information and belief after reasonable
14 inquiry as to other matters.

15 **NATURE OF THE ACTION**

16 1. This action concerns the validity of stockholder approval for the potential issuance of up
17 to 16,184,560 shares of Theriva Biologics, Inc. common stock upon exercise of warrants
18 issued in October 2025.

19 2. Plaintiff does not ask the Court to infer wrongdoing merely from warrant financing or
20 stock issuance. He challenges specific proxy disclosures and seeks the records needed to test
21 Theriva's quorum, adjournment, and tabulation representations.

22 3. Theriva's 29 June 2026 proxy told beneficial owners in one place that Proposal 5 was
23 routine and their brokers could vote without instructions. The same proxy elsewhere

1 classified Proposal 5 as non-routine and stated that brokers could not vote it without
2 instructions. Theriva reported 10,823,826 broker non-votes on Proposal 5.

3 4. Theriva reported that Proposal 5 passed with 3,665,312 votes for, 2,267,592 votes against,
4 and 123,397 abstentions. On the reported figures, the approval margin above a majority of
5 shares entitled to vote was 637,161 votes.

6 5. The dispute also arises from the 15 December 2025 special meeting. Theriva's proxy
7 stated a 34% quorum although its bylaws require one-third of voting power. Plaintiff recalls
8 that Chief Executive Officer and Chief Financial Officer Steven A. Shalkcross, after initially
9 saying he did not know the outstanding-share count and being told by attorney Leslie Marlow
10 that he had to answer, stated approximately 33,900,000 shares. Gary Pitoniak separately
11 recalls an answer of approximately 35 million. All three in-person attendees provide sworn
12 accounts that 22 December 2025 was announced as the next date and that no attendee
13 objected. Plaintiff further swears that company counsel called him about two hours later and
14 sought his agreement to abandon or change that date, which he refused. Exhibits A through C.

15 6. Plaintiff alleges that the post-meeting call was not merely an administrative scheduling
16 inquiry. Counsel sought Plaintiff's assent in his capacity as a Theriva stockholder, and
17 Plaintiff understood that counsel was attempting to obtain and use his stockholder assent to
18 cancel or abandon the announced December 22 continuation. Plaintiff pleads the call as an
19 alleged solicitation of his proxy, consent, or authorization and asks the Court to determine its
20 legal effect on the meeting process and warrant solicitation.

21 7. Plaintiff seeks a temporary status-quo order only if New Warrant Shares remain unissued
22 or further issuance is imminent. He seeks expedited production of the official tabulation and

1 meeting records, a declaration of the parties' rights, and final relief supported by the
2 completed record.

3 PARTIES

4 8. Plaintiff Mark Joseph Nejme is a citizen of New Jersey and a beneficial shareholder of
5 Theriva. His mailing address is P.O. Box 589, Clifton, New Jersey 07012. He has
6 continuously owned Theriva common stock for approximately four years, including
7 throughout the challenged 2025 and 2026 solicitations, and presently owns 90,191 shares
8 through brokerage accounts now maintained at Charles Schwab following transfer from TD
9 Ameritrade. Plaintiff will submit brokerage statements and voting confirmations, with
10 account numbers redacted, to establish continuous ownership and the record-holder chain.
11 Exhibit Q.

12 9. Defendant Theriva Biologics, Inc. is incorporated in Nevada and maintains its principal
13 executive office at 9605 Medical Center Drive, Suite 270, Rockville, Maryland 20850. Its
14 common stock trades on NYSE American under the symbol TOVX.

15 NONPARTY SHAREHOLDER WITNESSES

16 10. Gary Pitoniak is a nonparty Theriva shareholder witness who resides in Clifton, New
17 Jersey and attended the 15 December 2025 special meeting in person. He swears that he
18 owned 36,111 Theriva shares and that he purchased Theriva shares in approximately
19 November 2025. His affidavit supplies his own recollection of the session; the official proxy
20 and legal-proxy records remain in Theriva's or its agents' control. Exhibit B.

21 11. Paul Bernhardt is a nonparty Theriva shareholder witness who resides in Toms River,
22 New Jersey and attended the 15 December 2025 special meeting in person. He received
23 correspondence from company counsel responding to a records demand. His affidavit

1 supplies his own recollection, and the June 24, 2026 counsel letter is attached separately.
2 Exhibits C and O.

3 JURISDICTION AND VENUE

4 12. This Court has federal-question jurisdiction under 28 U.S.C. § 1331 and Section 27 of the
5 Securities Exchange Act of 1934, 15 U.S.C. § 78aa, because Count One arises under Section
6 14(a) and Rule 14a-9.

7 13. This Court has supplemental jurisdiction under 28 U.S.C. § 1367 over the related Nevada
8 claims because they arise from the same proxy solicitation, warrant approval, meetings, and
9 voting records.

10 14. Declaratory relief is authorized by 28 U.S.C. §§ 2201 and 2202. Temporary and
11 preliminary relief is governed by Federal Rule of Civil Procedure 65.

12 15. Venue is proper in this District under 28 U.S.C. § 1391 because Theriva is a Nevada
13 corporation subject to personal jurisdiction in Nevada. This action is tendered at the Northern
14 Division clerk's office because the requested internal-affairs relief concerns a Nevada
15 domestic corporation whose registered office and registered agent are in Carson City, within
16 the Northern Division. If the Court determines that a different unofficial division is
17 appropriate under LR IA 1-8, Plaintiff requests transfer within this District rather than
18 dismissal.

19 STANDING AND VOTING CAPACITY

20 16. Plaintiff held a beneficial interest in Theriva common stock during the challenged
21 solicitation and vote and alleges injury to his right to receive materially accurate proxy
22 information and to exercise an informed vote.

1 17. Plaintiff continues to hold Theriva common stock. Exercise and issuance of the New
2 Warrant Shares would dilute his voting interest and may make post-issuance relief more
3 difficult, particularly if shares are transferred to persons not before the Court.

4 18. Plaintiff attended the 15 December 2025 meeting as a beneficial owner and presented
5 proof sufficient for admission. Plaintiff does not presently rely on an unproduced legal proxy
6 to establish his voting authority at that session. He seeks the official legal proxies, voting list,
7 represented-share report, and tabulation to determine the voting power represented. His
8 firsthand testimony remains relevant to what was said and done in the room.

9 19. Gary Pitoniak and Paul Bernhardt likewise provide eyewitness testimony. Plaintiff does
10 not allege, without the official records, that their physical presence or beneficial ownership
11 alone established authority to vote particular shares in person. Theriva and its agents possess
12 the legal-proxy and represented-share records needed to determine that issue.

13 20. Plaintiff brings this action directly to vindicate his individual proxy, voting, and meeting
14 rights. He does not assert a derivative claim on behalf of Theriva and does not seek to
15 represent the corporation or other stockholders.

16 **THE GOVERNING CORPORATE DOCUMENTS**

17 21. Theriva's Second Amended and Restated Bylaws became effective on 3 October 2023
18 and identify Theriva as a Nevada corporation.

19 22. Section 1.03 requires notice stating the place, date, hour, and, for a special meeting, its
20 purpose. Notice generally must be given between ten and sixty days before the meeting.

21 23. Section 1.04 provides that a stockholder meeting may adjourn and reconvene at the same
22 or another place. New notice is not required if the time and place are announced at the
23 meeting, unless the adjournment exceeds thirty days or the board fixes a new record date.

1 24. Section 1.05 sets the quorum at one-third of the voting power entitled to vote. In the
2 absence of a quorum, the stockholders present may, by majority vote, adjourn in the manner
3 provided by Section 1.04 until a quorum attends.

4 25. Section 1.07 addresses voting and written proxies. Section 1.08 provides that a
5 determination of record holders entitled to vote applies to an adjournment unless the board
6 fixes a new record date.

7 26. Section 1.09 requires the secretary to prepare a voting list, make it available before the
8 meeting, and produce and keep it at the meeting for inspection by a stockholder present.

9 27. Section 4.08 requires the secretary to record stockholder-meeting proceedings and serve
10 as custodian of corporate records.

11 **THE DECEMBER 2025 PROXY**

12 28. Theriva solicited proxies for a special meeting scheduled for 15 December 2025 at its
13 Rockville, Maryland principal office. The proposals sought approval to issue up to
14 16,184,560 New Warrant Shares and authority to adjourn for further solicitation.

15 29. The proxy identified 30 October 2025 as the record date and reported 33,739,643
16 outstanding shares.

17 30. In its general-information paragraph, the proxy described Theriva as a Delaware
18 corporation. Theriva was and remains a Nevada corporation.

19 31. The proxy stated that a quorum required holders of 34% of outstanding shares to be
20 present or represented. Thirty-four percent of the reported outstanding shares is 11,471,479
21 shares, rounded up.

22 32. The bylaws instead required one-third of voting power, or 11,246,548 shares based on
23 the reported outstanding count. The two thresholds differ by approximately 224,931 shares.

1 33. The proxy told street-name holders that proof of ownership would allow admission but
2 that a legal proxy from the broker, bank, or nominee was required to vote in person.

3 34. The proxy represented that one or more inspectors of election would tabulate and certify
4 the votes.

5 **THE 15 DECEMBER MEETING AND THE DISPUTED ADJOURNMENT**

6 35. Plaintiff Mark Nejme and nonparty shareholder witnesses Gary Pitoniak and Paul
7 Bernhardt appeared in person at Theriva's Rockville office on 15 December 2025. Each
8 presented identification and proof sufficient to be admitted to the meeting room. Plaintiff
9 does not allege that admission alone established a legal proxy for any particular voting power.

10 36. The witnesses report that an individual in the room controlled the meeting computer.
11 Gary Pitoniak recalls that person being identified as "TJ"; Plaintiff Mark Nejme cannot
12 independently identify him. Steven A. Shallcross and Leslie Marlow participated remotely,
13 could be heard, and were not visible to the in-person attendees. The person's full name, title,
14 and role are among the records sought in expedited discovery.

15 37. Theriva later reported that it called the special meeting to order but that an insufficient
16 number of shares was present or represented to constitute a quorum. Theriva did not disclose
17 the represented-share count in its Form 8-K.

18 38. During the in-room session, Plaintiff asked Chief Executive Officer and Chief Financial
19 Officer Steven A. Shallcross how many shares were outstanding. Plaintiff recalls that Mr.
20 Shallcross first stated that he did not know. Attorney Leslie Marlow then stated in substance
21 that he had to answer, after which Mr. Shallcross stated approximately 33,900,000 shares.
22 Gary Pitoniak separately recalls an answer of approximately 35 million. Exhibits A, B, and R.

1 39. The reported answer is close to, but not identical with, the proxy's 33,739,643-share
2 count as of the 30 October record date. It is consistent with a rounded current estimate and
3 does not itself establish a discrepancy. Discovery should establish whether 35 million was a
4 rounded live count, a record-date count, or another measure. The record-date shares entitled
5 to vote—not a later live estimate—ordinarily control the quorum denominator. The December
6 statement also does not establish the number outstanding before the May 2025 offering.

7 40. The 16,184,560 New Warrant Shares were not outstanding common stock on 15
8 December because the New Warrants remained unexercisable pending stockholder approval.
9 Those unissued underlying shares could not vote and should not have been included in the
10 quorum denominator. By contrast, the 8,092,280 Existing Warrant Shares issued through the
11 17 October exercise were outstanding and formed part of the later capitalization.

12 41. During the called session, a remotely participating company representative announced in
13 substance that the meeting would reconvene or be held on 22 December 2025. The witnesses
14 do not claim to remember a stated time or a different place, and Plaintiff seeks the company's
15 recording, notes, and communications concerning the announcement.

16 42. Plaintiff stated in substance, 'Fine. That sounds like it is Hanukkah, but I will be there.'
17 Paul Bernhardt recalls that all three stockholders said they would attend. Gary Pitoniak recalls
18 Plaintiff and Paul expressly agreeing, recalls no objection, and states that he intended to
19 attend but cannot now say whether he verbally affirmed. The witnesses do not claim that a
20 formal motion, second, or share-weighted vote was announced. Their affidavits establish at
21 minimum that the date was announced, Plaintiff and Paul expressly agreed, Gary did not
22 object, and the session ended with the attendees understanding that 22 December was the next
23 date. Exhibits A through C.

1 43. The discussion addressed the warrant proposal, the lack-of-quorum assertion, and the
2 next meeting date. The company had convened participants and called the meeting to order,
3 but the parties dispute which corporate actions could lawfully occur without a quorum.

4 44. Theriva's same-day Form 8-K stated that it had determined to call a new special meeting.
5 It did not mention 22 December or the in-room announcement reported by the witnesses.

6 45. About two hours after the meeting, while Plaintiff Mark Nejmech was traveling through
7 Virginia, he received a call on his T-Mobile telephone line ending in 3914. Plaintiff recalls
8 that the call originated from a number used by the Theriva or Synthetic Biologics office and
9 that he was connected to attorney Leslie Marlow, acting for Theriva. Ms. Marlow told him in
10 substance, 'You don't really want to have the meeting on December 22.' Exhibit A.

11 46. Plaintiff refused to agree. He told Ms. Marlow in substance that the warrant proposal had
12 not passed and that the company should not abandon the December 22 continuation and start
13 another process. Ms. Marlow then said in substance, 'Oh, well, we will just start all over
14 again.' Plaintiff objected that the warrants were unfair and told the company to stop playing
15 games. Exhibit A.

16 47. Plaintiff retained a T-Mobile carrier record or device log corroborating the date, time,
17 connection, and duration of the call. The record does not record the words spoken. Plaintiff
18 will submit a copy with unrelated telephone activity and unnecessary personal information
19 redacted. Exhibit P.

20 48. Plaintiff's sworn testimony supplies his firsthand account of the substance of the call. The
21 telephone record corroborates the occurrence and timing of the connection but does not itself
22 establish the words spoken.

1 49. Exchange Act Rule 14a-1(f) defines a proxy to include every proxy, consent, or
2 authorization and states that consent or authorization may take the form of a failure to object
3 or dissent. Rule 14a-1(l) includes within a solicitation a request for a proxy and a
4 communication to a security holder under circumstances reasonably calculated to procure,
5 withhold, or revoke a proxy.

6 50. Plaintiff alleges that counsel's request sought his proxy, consent, or authorization as a
7 stockholder concerning whether the announced December 22 continuation would proceed.
8 Plaintiff understood that counsel was attempting to obtain and use his assent, or at least his
9 non-objection, to justify cancelling or abandoning that date. He expressly refused. The call is
10 therefore material both as an alleged proxy or consent solicitation and as contemporaneous
11 evidence that Theriva treated Plaintiff's stockholder assent and the December 22 date as
12 consequential after the December 15 session. Plaintiff asks the Court to determine the call's
13 legal effect after expedited discovery.

14 **RECORDS DEMANDS AND LATER SOLICITATIONS**

15 51. Plaintiff Mark Nejmei and nonparty shareholder witness Paul Bernhardt demanded the
16 December voting records, including the official tabulation or Broadridge records, and
17 requested minutes or other records of the called session. Exhibits N and O.

18 52. The shareholders made two principal written demand and notice submissions to Theriva
19 and its counsel, with copies directed to the company's Rockville and Spain offices. The
20 correspondence requested voting, quorum, minutes, warrant, and related records. Copies,
21 certified-mail receipts, and available delivery confirmations are assembled as Exhibit N.

22 53. On 24 June 2026, Blank Rome partner Andrew T. Hamblen sent Paul Bernhardt a two-
23 page response by email and overnight mail on Theriva's behalf. The letter identifies Paul's

1 earlier 4 June demand, a 10 June company response, and two substantially identical demands
2 dated 16 June. A public copy, with Paul's street address and personal email redacted and the
3 original preserved, is attached as Exhibit O.

4 54. The 24 June letter rejected inspection under NRS 78.257 based on Paul's ownership and
5 the reporting-company exception, and rejected the request for minutes, voting records,
6 attorney-client communications, and proxy-solicitation invoices as outside the limited records
7 enumerated in NRS 78.105. Those statutory positions do not decide whether the same records
8 are discoverable after suit or whether the bylaws imposed separate meeting duties.

9 55. The letter states that Theriva called to order the special-meeting sessions on 15 December
10 2025, 11 February 2026, 9 April 2026, and 5 June 2026. It also states Theriva's contrary
11 characterization: no session convened because no quorum existed and therefore no meeting
12 minutes exist. The letter corroborates the called-to-order sequence but does not admit a
13 quorum, a valid adjournment, or that a stockholder meeting legally occurred.

14 56. No requested minutes, voting list, Broadridge report, inspector's tabulation, or current
15 warrant-status record was produced. Paul Bernhardt received the June 24 response. Plaintiff
16 Mark Nejme, the approximately four-year holder who received the post-meeting call,
17 received no substantive response to his demand.

18 57. These communications put Theriva on notice of the dispute and the need to preserve
19 meeting and voting records. Plaintiff does not allege that every requested document was
20 subject to an unconditional pre-suit inspection right under NRS 78.105.

21 58. After the three United States stockholders attended the 15 December 2025 session in
22 Maryland, Theriva scheduled every later warrant-approval session in person at its research
23 office in Parets del Vallès, Barcelona, Spain: the 11 February, 9 April, and 5 June 2026

1 special meetings and the 3 August 2026 annual meeting. The filed notices described in-person
2 attendance and did not offer remote stockholder attendance. Repeated international travel was
3 expensive and unreasonable for Plaintiff. Plaintiff alleges on information and belief that
4 choosing the overseas location for every later session was intended, at least in part, to impede
5 the continued in-person attendance and scrutiny of Plaintiff and the other United States retail
6 stockholders. The location notices are public facts; Theriva's intent is disputed and requires
7 discovery. Exhibits G through J.

8 **SHARE ISSUANCES AND THE JUNE RECORD DATE**

9 59. Theriva reported 9,059,232 common shares outstanding on 30 June 2025 and 10,304,762
10 on 30 September 2025. Its 10-Q cover pages reported 9,597,952 on 7 August and 33,739,643
11 on 7 November; the December proxy used the same 33,739,643 count as of the 30 October
12 record date.

13 60. The increase from 10,304,762 on 30 September to 33,739,643 on the record-date and
14 cover-page disclosures is 23,434,881 shares. The filing discloses components that reconcile
15 exactly: 8,092,280 shares from exercise of the Existing Warrants, plus ATM sales of
16 5,016,586 shares and 10,326,015 shares, totaling 15,342,601 ATM shares.

17 61. The 16,184,560 New Warrant Shares were not outstanding common stock and were not
18 entitled to vote while the New Warrants remained unexercisable pending stockholder
19 approval. Issuance of a warrant security is not the same as issuance of its underlying common
20 share.

21 62. Theriva's outstanding common shares increased from 33,739,643 on the October 2025
22 record date to 45,892,668 on the June 2026 record date, an increase of 12,153,025 shares.

1 63. Theriva's quarterly filing reported 10,204,319 ATM shares sold in the first six months of
2 2026, all during the first quarter, for approximately \$2.3 million in net proceeds.

3 64. The October 2025 inducement agreement permitted ATM sales beginning after a
4 specified post-closing period. The fact of disclosed ATM sales therefore does not itself
5 establish breach or manipulation.

6 65. Plaintiff alleges on information and belief that the timing and purpose of the issuances
7 warrant discovery because the electorate and quorum base changed before Proposal 5 was
8 approved. On or about October 30, 2025, Plaintiff personally reviewed the Yahoo Finance
9 page for TOVX and specifically recalls that its field labeled 'Shares Outstanding' displayed
10 approximately four million shares, materially below Theriva's later-filed count of
11 approximately 33.7 million shares. Plaintiff understood 'Shares Outstanding' to be a separate
12 field from 'Float.' He did not then know, and does not now allege without records, whether
13 the displayed figure originated with Yahoo, an outside data provider, Theriva, or another
14 source. The discrepancy makes the source, timing, and correction of share-count information
15 relevant to focused discovery, including any Theriva-controlled communications with
16 market-data and investor-relations providers. Plaintiff will amend only if records provide a
17 factual basis to allege an improper purpose.

18 **MAY-TO-OCTOBER FINANCING SEQUENCE**

19 66. On 7 May 2025, Theriva announced that the VIRAGE Phase 2b trial met its primary
20 efficacy and safety endpoints and hosted a live virtual data event scheduled for 8:00 a.m.
21 Eastern Time.

22 67. Plaintiff and witnesses who viewed the event report that participating doctors described
23 the results in strongly favorable terms. They further report that shareholders requested to ask

1 questions, but the moderator allowed only one question, which they understood was from
2 AGP. Plaintiff seeks the event recording, submitted-question log, moderator instructions, and
3 communications needed to determine the speakers, question source, and treatment of unasked
4 questions.

5 68. Also on 7 May 2025, after its Form S-1 registration statement became effective, Theriva
6 priced what its SEC filings describe as a registered reasonable-best-efforts public offering.
7 The offering closed on 8 May and included 1,990,900 common shares, pre-funded warrants
8 for 4,827,280 shares, and common warrants for 6,818,180 shares. Each common share or pre-
9 funded-warrant unit was sold with one common warrant at a combined price of \$1.10 or
10 \$1.099, respectively; each common warrant had a \$1.10 exercise price. The agreement was
11 with Purchasers identified on signature pages, and AGP acted as placement agent rather than
12 a firm-commitment underwriter.

13 69. The SEC classification and the NYSE American classification are not identical. For
14 federal Securities Act purposes, this was registered and was not a private placement. Under
15 Section 713 and its Commentary .01, however, registration alone does not make a transaction
16 a public offering exempt from shareholder approval. NYSE American considers the
17 underwriting or best-efforts structure, breadth of marketing, number and identity of
18 purchasers and prior relationships, discount, and issuer control. The Exchange's written
19 determination and offering-distribution record are therefore relevant evidence controlled by
20 Theriva, AGP, the purchasers, or NYSE American.

21 70. The May 8 Form 8-K reported 4,773,358 common shares outstanding after closing,
22 assuming no exercise of the pre-funded or common warrants. Subtracting the 1,990,900
23 shares issued at closing yields an inferred pre-offering count of 2,782,458. Twenty percent

1 was approximately 556,492 shares. The 1,990,900 issued shares alone equaled approximately
2 71.6% of that base; the 6,818,180 common-share and pre-funded-warrant units equaled
3 approximately 245.0%; and including the paired common warrants produced potential
4 issuance of 13,636,360 shares, approximately 490.1%. Plaintiff offers these calculations only
5 as a numerical Section 713 screen and seeks the capitalization records and NYSE American
6 counting determination in discovery.

7 71. The reported 6,818,180 primary units explain the recollection of approximately seven
8 million shares. For 6,818,180 potential shares to be less than 20% of the pre-transaction
9 common shares, more than 34,090,900 shares would have needed to be outstanding—not
10 merely authorized or included in the float. Theriva's filed post-closing count does not support
11 such a pre-transaction number.

12 72. Section 713's 20% test is not a special small-market-cap offering limit. It is an NYSE
13 American shareholder-approval rule and, when its pricing condition is met, applies to listed
14 issuers generally. A separate Securities Act rule—Form S-3 General Instruction I.B.6, often
15 called the baby-shelf rule—limits certain primary offerings by issuers with a public float
16 below \$75 million to one-third of public float over twelve months. The May transaction was
17 registered on Form S-1, so the Form S-3 baby-shelf ceiling did not govern that offering.

18 73. Crossing 20% does not alone prove a Section 713 violation. No approval is required if
19 NYSE American treated the transaction as a public offering for its rule, and a qualifying cash
20 sale at or above the Section 713 Minimum Price may use a separate exception. Plaintiff seeks
21 the exact agreement time, the lower of the immediately preceding official closing price and
22 five-day average, the value assigned to the bundled warrants, and the Exchange's actual

1 determination. The reported \$1.10 price and Plaintiff's recollection of an approximately \$1.35
2 prior close create a concrete inquiry, not a final conclusion.

3 74. Plaintiff recalls a prior trading price of approximately \$1.35, a premarket price as high as
4 approximately \$2.86 during the positive-data publicity, and a later decline to approximately
5 \$0.50. Plaintiff will seek official closing, premarket, and intraday time-and-sales data for the
6 relevant comparison times, the time at which the offering was priced and announced, and any
7 necessary adjustment for a stock split. He does not rely on recollection alone as final proof of
8 those market facts.

9 75. On 16 October 2025, holders of warrants covering 8,092,280 shares agreed to exercise
10 them at a reduced price of \$0.54. The exercised warrants included 1,345,000 warrants issued
11 in September 2024 and 6,747,280 warrants issued in May 2025. The May-warrant exercise
12 price was thereby reduced from \$1.10 to \$0.54, a reduction of approximately 50.9%.

13 76. In consideration for those exercises, Theriva issued the same holders private-placement
14 New Warrants covering 16,184,560 shares at \$0.54 per share—200% of the shares underlying
15 the exercised warrants. The New Warrants required stockholder approval before exercise
16 under the terms disclosed by Theriva and NYSE American requirements identified in the
17 proxy.

18 77. This chronology may support discovery into board process, investor identity, allocation,
19 conflicts, disclosure, financing alternatives, and whether the New Warrants affected a
20 contemplated strategic transaction. The webcast was an investor data event, not a stockholder
21 meeting; restricting audience questions is not by itself a bylaw violation. The sequence does
22 not, without additional facts, make a below-market public offering, a warrant repricing, or an

1 inducement unlawful. The complaint should not call the May offering a private placement;
2 the October New Warrants were the private placement.

3 78. Plaintiff does not plead a Rule 10b-5 damages claim based on the May offering or
4 webcast in this complaint. He alleges the sequence as context and as a basis for focused
5 discovery concerning the later warrant solicitation, capitalization, board process, and current
6 warrant status.

7 79. Plaintiff also seeks the New Warrants' Fundamental Transaction and Black-Scholes-value
8 provisions and any capitalization models supplied to a potential merger counterparty. Those
9 provisions may affect transaction economics, but their existence does not prove that a reverse
10 merger was agreed or that the warrant vote was invalid.

11 **THE AUGUST 2026 PROXY CONTRADICTION**

12 80. Theriva scheduled its 2026 annual meeting for 3 August 2026 and fixed 23 June 2026 as
13 the record date. The definitive proxy reported 45,892,668 outstanding shares.

14 81. Proposal 5 again sought approval to issue up to 16,184,560 New Warrant Shares.

15 82. The proxy told street-name holders that brokers could vote uninstructed shares in their
16 discretion on certain matters, listing Proposals 2, 4, 5, and 7 as routine.

17 83. Elsewhere the same proxy stated that Proposals 1, 3, and 5 were non-routine and that
18 brokers without customer instructions were not entitled to vote those proposals.

19 84. In the immediately following sentence, the proxy again listed Proposal 5 among matters
20 on which a broker without instructions could vote in its discretion. The proxy separately
21 stated that broker non-votes would have no effect on Proposal 5.

1 85. The two instructions cannot both be correct as to Proposal 5. The distinction mattered to
2 beneficial owners deciding whether they needed to provide voting instructions and whether
3 inaction would leave Proposal 5 unvoted.

4 86. A review of Theriva's EDGAR filings and official company disclosures through 16
5 September 2026 located no corrective proxy material that clearly resolved the Proposal 5
6 contradiction before the vote.

7 87. Theriva reported that Proposal 5 received 3,665,312 votes for, 2,267,592 against,
8 123,397 abstentions, and 10,823,826 broker non-votes.

9 88. The reported broker non-votes were not counted as votes entitled to vote on Proposal 5.
10 That reported treatment does not eliminate the risk that contradictory instructions affected
11 whether beneficial owners submitted instructions at all.

12 **CURRENT THREAT AND REQUESTED STATUS QUO**

13 89. Theriva's Form 10-Q filed on 11 August 2026 reports 45,892,668 shares outstanding as
14 of 7 August 2026, the same count reported for the 23 June record date. It states that the New
15 Warrants covering 16,184,560 shares became exercisable on 3 August 2026 and expire on 3
16 August 2031. The filing does not disclose an exercise between 3 and 7 August. Theriva's
17 public filings and official disclosures reviewed through 16 September 2026 do not disclose a
18 later exercise, cashless exercise, settlement, amendment, cancellation, transfer, or issuance of
19 underlying shares. That absence does not establish that no activity occurred; the current status
20 remains within Theriva's and its agents' control. Exhibit L.

21 90. Theriva's quarterly report for the period ended 30 June 2026 states that the company was
22 engaged in ongoing discussions with institutional investors and investment banks about
23 strategic alternatives that may include a business combination, merger, or reverse merger.

1 91. On 24 July 2026, the board amended option awards for directors and employees to
2 accelerate vesting upon execution of a definitive merger agreement. On 10 August 2026,
3 Theriva entered an amended CEO employment agreement whose change-in-control definition
4 expressly includes a transaction with a non-listed private operating company, including a
5 reverse merger.

6 92. These disclosures establish an active strategic review and transaction-readiness steps.
7 They do not establish that Theriva signed a merger agreement, identified a counterparty, or
8 selected a reverse merger. Theriva's quarterly report states that the board had not approved a
9 definitive course of action as of the report.

10 93. Without a temporary order, Theriva may permit exercise and issue or transfer shares
11 before the Court can review the solicitation and tabulation records. Once shares enter the
12 market or third parties acquire interests, effective relief may become more complex.

13 94. A merger or reverse merger could further change the capitalization and place rights in
14 additional third parties. Plaintiff therefore requests expedited disclosure of current warrant
15 status and any definitive transaction, while recognizing that a strategic review alone does not
16 prove immediate irreparable harm.

17 95. Plaintiff seeks a narrow order preserving the status quo, expedited discovery, and a
18 prompt hearing. He does not seek in this motion to prevent ordinary-course activity unrelated
19 to the 16,184,560 New Warrants.

20 **COUNT ONE**

21 96. Plaintiff incorporates paragraphs 1 through 95.

Section 14(a) and Rule 14a-9

1
2 97. Section 14(a) of the Exchange Act and Rule 14a-9 prohibit solicitation by a proxy
3 statement containing a materially false or misleading statement or omitting a material fact
4 necessary to make the statements not misleading.

5 98. Rule 14a-1(f) defines a proxy to include every consent or authorization, including
6 consent or authorization expressed through a failure to object or dissent. Rule 14a-1(l) defines
7 solicitation to include a request for a proxy and a communication to a security holder under
8 circumstances reasonably calculated to procure, withhold, or revoke a proxy.

9 99. Plaintiff alleges that Leslie Marlow's post-meeting telephone request was a solicitation of
10 Plaintiff's proxy, consent, or authorization because she sought his stockholder assent that the
11 announced December 22 continuation should not proceed. Plaintiff refused and did not
12 authorize cancellation, abandonment, or replacement of that date.

13 100. The call's occurrence, purpose, authorization, recipients, and treatment by Theriva are
14 material to the scope and accuracy of the continuing warrant solicitation and to whether
15 Theriva attempted to obtain stockholder assent outside the announced meeting process.
16 Plaintiff seeks expedited production of the related nonprivileged records and a determination
17 of the call's legal effect; he does not rely on the telephone record alone to prove the words
18 spoken.

19 101. A reasonable Theriva stockholder would consider it important to know whether a broker
20 could vote Proposal 5 without customer instructions. That information directly affected
21 whether a beneficial owner needed to act to cast or withhold a vote on a potentially dilutive
22 issuance equal to approximately 35% of the June record-date outstanding shares.

1 102. Theriva's definitive proxy made irreconcilable statements on that subject in the
2 'Information About Voting' section. On page 3 it listed Proposal 5 as routine and referred to a
3 nonexistent Proposal 7, while on page 5 it classified Proposal 5 as non-routine and, in the
4 next sentence, again included Proposal 5 in a list of routine matters. Exhibit J at 3 and 5.

5 103. Theriva solicited proxies to obtain the stockholder approval required before it could
6 permit exercise and issuance of the New Warrant Shares. The proxy solicitation was an
7 essential link in the reported approval.

8 104. Plaintiff received or accessed the proxy materials and voted against Proposal 5. His vote
9 does not cure a materially contradictory instruction distributed to the solicited beneficial-
10 owner electorate. Plaintiff alleges impairment of the integrity of the solicitation and his right
11 to have the proposal decided through materially accurate voting instructions.

12 105. The reported vote margin and broker non-vote total support materiality and the need for
13 expedited examination of solicitation and tabulation records, although Plaintiff does not
14 assume that all broker non-votes would have been cast against Proposal 5.

15 106. Plaintiff has suffered impairment of his informed voting rights and faces imminent
16 dilution if the challenged approval permits issuance before judicial review.

17 107. Plaintiff lacks an adequate remedy at law because a completed issuance and
18 downstream transfers may make reconstruction of the vote and effective equitable relief
19 substantially more difficult.

20 108. Plaintiff is entitled to declaratory and injunctive relief, subject to proof, including a
21 status-quo order, expedited production, and such corrective solicitation or revote relief as the
22 Court finds necessary.

COUNT TWO

109. Plaintiff incorporates paragraphs 1 through 95.

Declaration and enforcement of Nevada corporate rights

110. NRS 78.310 and 78.320 and Theriva's bylaws govern the calling, quorum, voting, and adjournment of stockholder meetings. The bylaws require a one-third quorum and permit the stockholders present, by majority vote, to adjourn when a quorum is absent.

111. An actual controversy exists concerning the represented voting power on 15 December 2025, whether a valid adjournment to 22 December occurred, whether Theriva could disregard that announced date, whether counsel solicited Plaintiff's stockholder consent or authorization to cancel or abandon that date, and what effect, if any, those events have on later stockholder approval.

112. The public record does not disclose the represented-share count or inspector certification for 15 December. Theriva's 34% proxy statement conflicts with the one-third bylaw standard, and the difference is approximately 224,931 shares.

113. Plaintiff's declaration, the two witness declarations, telephone evidence, and the official legal-proxy, voting-list, and tabulation records requested from Theriva will permit the Court to determine whether the December announcement and agreement satisfied Sections 1.04 and 1.05 of the bylaws.

114. Plaintiff acknowledges that later meetings could be independently called under the inducement agreement and Nevada law. Cancellation of 22 December does not automatically extinguish all authority to call another meeting. The validity of the August approval must be determined from the legal relationship among the meeting actions, the new record date, and the 2026 proxy solicitation.

1 115. Under 28 U.S.C. § 2201 and applicable Nevada law, Plaintiff requests a declaration of
2 the parties' rights under the bylaws and NRS Chapter 78, together with necessary
3 supplemental injunctive relief.

4 **PRAYER FOR RELIEF**

5 Plaintiff respectfully requests that the Court:

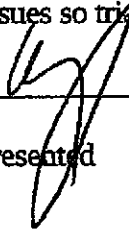
- 6 A. Temporarily restrain and preliminarily enjoin Theriva, and persons acting in concert with
7 it who receive actual notice, from permitting exercise of the New Warrants or issuing,
8 delivering, registering, or transferring New Warrant Shares pending expedited review,
9 except as the Court permits;
- 10 B. Order preservation of all proxy, meeting, tabulation, legal-proxy, inspector, Broadridge,
11 DTC, transfer-agent, NYSE American, warrant-exercise, and relevant communication
12 records;
- 13 C. Order narrowly tailored expedited discovery and a prompt evidentiary hearing;
- 14 D. Declare whether the June 2026 proxy solicitation for Proposal 5 violated Section 14(a)
15 and Rule 14a-9;
- 16 E. Declare the correct December 2025 quorum standard and determine the represented voting
17 power at the 15 December meeting;
- 18 F. Declare whether the meeting was validly adjourned to 22 December and the legal effect of
19 any later cancellation or new record date;
- 20 G. Declare whether the post-meeting telephone request constituted a solicitation of Plaintiff's
21 proxy, consent, or authorization and determine its legal effect on the December 22
22 meeting process and continuing warrant solicitation;

- 1 H. If the Court finds the approval invalid, order an accurate corrective solicitation and revote
2 before further issuance;
- 3 I. If shares have already issued, grant only such cancellation, rescission, voting, or other
4 equitable relief as is lawful after joinder and protection of affected holders and
5 recipients;
- 6 J. Award allowable costs and, only if a statute or other rule authorizes it, reasonable
7 attorneys' fees; and
- 8 K. Grant other relief the Court finds just and proper.

9

DEMAND FOR JURY TRIAL

10 Plaintiff demands a trial by jury on all issues so triable.

11 Date: 9-16-2026 Signature: 

12 Mark Joseph Nejme, Plaintiff, self-represented

1

VERIFICATION

2 I, Mark Joseph Nejme, declare under penalty of perjury under the laws of the United States
3 that I have read this Verified Complaint. The facts stated from my personal knowledge are
4 true. As to matters stated on information and belief, I believe them to be true after reasonable
5 inquiry.

6 Executed on 9-16-2022 at Sonesta Reno hotel, Reno Nevada

7 Signature: [Signature] 9-16-2022

8 Mark Joseph Nejme

State of Nevada
County of Washoe

This instrument was acknowledged before
me on September 16, 2022 by Amanda Resnik

A-RW

Notary Public

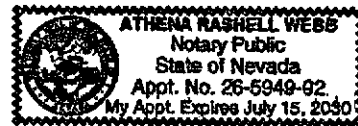


EXHIBIT R-2

Twitter posts of Plaintiff (@news_weed), October 15, 2025
(screenshot, unaltered)

Nejmeh v. Theriva Biologics, Inc., No. 3:26-cv-00705-ART-CSD

9:17

LTE



News Weed

2.6K posts



Posts



News Weed @news_weed · 10/15/25



@PPortfolioooo \$stovx does not have a 9 million share float due to warrants and 4.5 million shares ready to be released plus even more with option grants to employees. More like 18 million



103



News Weed @news_weed · 10/15/25



\$TOVX if you want to talk about call me 215-219-7699



415



News Weed @news_weed · 10/15/25



@AnunTrades \$stovx the smartest people will buy the stock at this price, hold it and watch the ebb and flow of highs and lows, but inevitably this is a very valuable stock if they truly have something for pancreatic cancer and brain cancer



98



News Weed @news_weed · 10/15/25



\$Tovx my average on this stock is \$13.84 I own 50000 . I expect a good profit



473



News Weed @news_weed · 10/15/25

\$TOVX INVESTORS THE REAL FLOAT OF \$TOVX IS ABOUT 40 million shares. Yes the

